

The Assam Aided Colleges Employees Rules, 1960

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The Assam Aided Colleges Employees Rules, 1960

Rule THE-ASSAM-AIDED-COLLEGES-EMPLOYEES-RULES-1960 of 1960

Published on 9 March 1961

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The Assam Aided Colleges Employees Rules, 1960

Published vide Notification No. ESS-140/59, dated 9th March, 1961

Last Updated 10th February, 2020

Notification No. ESS-140/59. - The Governor of Assam is pleased to approve the following set of rules governing the conditions of service, leave, etc., of the employees of the Government aided educational institutions in the State, viz., Assam Aided Colleges Employees Rules, 1960 ; Assam Aided High and Higher Secondary Schools Employees Rules, 1960 ; and Assam Aided, Middle English School Teachers Rules, 1960. These rules will come into force with effect from 15th February, 1961.

The Government of Assam is pleased to make the following rules regarding recruitment and the conditions of service of persons employed in Aided Colleges in Assam :

1.

Short title and commencement.

- These rules may be called the Assam Aided Colleges Employees Rules, 1960.

These rules shall come into force on such date as the State Government may, by notification in the official Gazette, direct.

2.

Extent of application.

- These rules shall apply to all persons recruited to the service and also to persons already in service in a Government Aided College coming under these rules on the date of the commencement of these rules.

3.

Definitions.

- In these rules unless there is anything repugnant in the subject to context-

(a)

"Appointing Authority" means the appointing authority under these rules;

(b)

"Government" means Government of Assam in the Education Department ;

(c)

"Governing Body" means the Body constituted under the Assam Education Department Rules and Orders ;

(d)

"Selection Board" means the Selection Board constituted under the provisions of Rule 4 (1);

(e)

"Year" means the calendar year;

(f)

"Government Aided College" means a college receiving maintenance grant from the State Government.

4.

Method of recruitment.

(1)

Principals. - (i) There shall be a State Selection Board consisting of the following, viz.:

(a)

A member of the Assam Public Service Commission - Chairman ;

(b)

Director of Public Instruction-Secretary ;

(c)

Deans of the Faculties of Arts and Science, Gauhati University - Members ;

(d)

One Educationist nominated by Government - Member ;

(e)

One Principal nominated by Government - Member.

(ii)

The Director of Public Instruction shall ascertain from various institutions concerned well ahead of each academic year probable vacancies that are likely to arise during the year and advertise such vacancies in at least two newspapers and also in the Assam Gazette.

(iii)

The Selection Board after scrutiny of particulars and after interview, if necessary, shall prepare a list of candidates in order of preference and shall forward the list so prepared to the Government Bodies concerned.

Appointment of Principals already in service shall be regularised in accordance with the conditions as in Rule 5. Principals not having the requisite qualifications and experience as set forth in Rule 5, if retained or taken on for non-availability of duly qualified persons and shall get their grade pay and a special pay.

(iv)

The Governing Body shall make appointments after necessary verification and with prior approval of the Director of Public Instruction, Assam.

(v)

The list of candidates shall ordinarily remain valid for one year from the date of selection.

(2)

Professors and Lecturers. - The Governing Body shall advertise all vacancies for a period not exceeding six months in at least two newspapers and shall, on scrutiny of the records, and after interview, if necessary, make appointments subject to the approval of the Director of Public Instruction.

(3)

Office Assistants. - The Governing Body concerned shall after due advertisement in at least two newspapers make the appointment of Office Assistants subject to the approval of the Director of Public Instruction, Assam.

(4)

Power to fill up temporary vacancies. - Except where it is otherwise provided in these rules, the Governing Body, shall have powers to fill up any temporary vacancy without advertisement which may not extend beyond six months subject to necessary approval of the Director of Public Instruction, Assam.

5.

Academic and other Qualifications.

- (i) (a) Principal - (A) candidate must possess the minimum qualification prescribed by University Grants Commission/Government for appointment as Lecturer of a College with 8 years continuous teaching or administrative experience in a deficit system of grants-in-aid college/University or in Educational Administration.

(B)

Candidate must be a selection grade Lecturer in addition to qualification at (A) above.

6.

Disqualifications for appointment.

- No person shall ordinarily be eligible for appointment unless he is a citizen of India.

7.

Probation.

- All persons appointed in an Aided College school be on probation for a period of two years subject to the production of medical certificate as may be prescribed ;

Provided that in the event of unsatisfactory work or conduct during the period of probation for which written warning was given to a probationer, in the event of failure to pass an examination or training or test if so prescribed, the period may be extended by another year.

8.

Discharge of a probationer.

- A probationer will be liable to discharge from the service-

(a)

if he/she fails to give satisfaction during or at the end of the period of probation;

(b)

if on any information received relating to his/her nationality, age, health, character and antecedents, the Appointing Authority is satisfied that the probationer is ineligible or otherwise unfit for holding the appointment.

9.

Confirmation.

(1)

Where a probationer has completed his/her period of probation to the satisfaction of the Appointing Authority, he/she shall be confirmed in the service on completion of 2 years probation.

(2)

The inter-seniority of persons shall be determined in accordance with the date of substantive appointment.

10.

Character Rolls.

- Character Rolls in respect of Principals and Vice-Principals of Colleges shall be initiated by Presidents of the Governing Bodies and countersigned by the Director of Public Instruction ; in respect of Heads of Departments initiated by the Principals and countersigned by the Presidents of the Governing Bodies ; and in respect of other teachers initiated by the Head of the Departments and countersigned by the Principals.

11.

Superannuation.

- An employee of an aided College shall retire on attaining the age of 60 years :

Provided that the Governing Body may, for any special reasons, recommend to the Director of Public Instruction for extension of service to an employee beyond 60 years and the Director of Public Instruction may, on the merits of the case and subject to the employee being certified by a Medical Officer duly authorised for the purpose as physically and mentally fit, grant extension for a period not exceeding one year at a time. No member shall, however, be retained in service beyond the age of 63 years.

12.

Appeal by the Governing Body.

(1)

A Governing Body aggrieved by an order passed by the Director of Public Instruction under these rules may, within 30 days of the receipt of such orders, prefer an appeal to the Government against the orders passed by the Director of Public Instruction. A copy of the order appealed against must invariably accompany such application. The order of the Government on appeal shall be final.

(2)

An employee aggrieved by any order of the Governing Body concerned may, within 15 days of receipt of such orders, prefer an appeal to the Director of Public Instruction and to the Government against the orders of the Director of Public Instruction within 30 days of the receipt of Director of Public Instruction's order through proper channel.

13.

Contributory Provident Fund.

- Every teacher who has been confirmed, shall subscribe to the Contributory Provident Fund and according to the rules prescribed in the Education Department Rules and Orders.

14.

Savings.

(1)

Except appointments not confirmed prior to 1st October, 1956, all things done or action taken before the commencement of these rules shall be construed as validly done or taken under corresponding provisions of these rules.

(2)

All appeals and other matters pending before the authority on the date of the commencement of these rules shall be transferred to and be treated as pending before the appropriate authority under these rules.

(3)

Notwithstanding anything contained in the foregoing rules in respect of appointments, Government may at any time call for the records and pass necessary orders after examination thereof.

15.

On the basis of reports or inspection the Director of Public Instruction may direct the Governing Body of a College to enquire into the conduct of any employee and also to take such action as considered appropriate by it.

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